May 7, 2026

Senator Clare Oumou Verbeten
Assistant Majority Leader
95 University Avenue W.
Minnesota Senate Bldg., Room 2101
St. Paul, MN 55155

Senator Warren Limmer
95 University Avenue W.
Minnesota Senate Bldg., Room 2221
St. Paul, MN 55155

Senator Ron Latz
95 University Avenue W.
Minnesota Senate Bldg., Room 3105
St. Paul, MN 55155

Representative Paul Novotny
2nd Floor Centennial Office Building
St. Paul, MN 55155

Representative Jeff Witte
2nd Floor Centennial Office Building
St. Paul, MN 55155

Representative Kelly Moller
5th Floor Centennial Office Building
St. Paul, MN 55155

Representative Sandra Feist
5th Floor Centennial Office Building
St. Paul, MN 55155

Senator Erin Murphy
Majority Leader
3113 Minnesota Senate Bldg.
St. Paul, MN 55155

Senator Mark Johnson
Minority Leader
2401 Minnesota Senate Bldg.
St. Paul, MN 55155

Representative Lisa Demuth
Speaker of the House
2nd Floor Centennial Office Building
St. Paul, MN 55155

Representative Zack Stephenson
DFL Caucus Leader
5th Floor Centennial Office Building
St. Paul, MN 55155

Re: Letter in Opposition to Minnesota SF 4760

Dear Senator Oumou Verbeten, Senator Limmer, Senator Latz, Representative Novotny, Representative Witte, Representative Moller, Representative Feist, Majority Leader Murphy, Minority Leader Johnson, Speaker of the House Demuth, and DFL Caucus Leader Stephenson:

On behalf of the Association of National Advertisers ("ANA"), we write to express our concerns with Minnesota SF 4760.[1] As drafted, SF 4760 would make it a felony to "advertise or market financial or technological products that promote transactions" that would be prohibited under a section of the bill banning prediction markets in the state.[2] This advertising restriction is unnecessary, overly broad, and likely to create unintended consequences. Accordingly, we ask you to remove the advertising provision in Section 75, Subdivision 3 from the bill.

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[1] Minnesota SF 4760 (2025-2026 Reg. Sess.), 1st Unofficial Engrossment, located here (hereinafter, "SF 4760").
[2] SF 4760 § 75, subd. 3.

As America's oldest and largest advertising trade association, the ANA has long supported the efforts of brands, advertisers, marketing service providers, and countless other entities to provide consumers with accurate information about products and services they may like to learn about. With a mission to shape the future of marketing, the ANA sets the agenda for the industry, connecting its members to unparalleled expertise, industry-leading resources, and an influential global network. Representing over 1,600 companies – including over 1,000 client-side marketers, 600 marketing solutions providers, and 20,000 brands – ANA members collectively influence $400 billion in annual marketing spending. By championing the 12-point ANA Growth Agenda and the CMO Growth Council, the ANA drives actionable change, empowers marketers, shapes the marketing ecosystem, and delivers exceptional experiences at every touchpoint. Since 1910, the ANA has been setting the agenda for industry transformation. It enables marketers to advance their ambitions, make better decisions, and create lasting impact for their organizations and the industry. We would welcome the opportunity to engage with you further on the points we discuss in this letter.

I. SF 4760 would create an avoidable policy problem by broadly imposing felony liability on speech about financial or technological products.

As drafted, SF 4760's prediction markets advertising provision is unnecessary, overbroad, and uncertain. Indeed, to the extent advertising promotes an illegal or outlawed product or service, Minnesota's existing consumer protection laws are available to address that conduct without creating a new felony advertising offense. The provision is also not limited to *operators* of prediction market platforms. Instead, it is cast broadly to potentially reach any entity that advertises or markets "financial or technological products," a phrase that could encompass market-data tools, financial-information services, compliance services, payment technologies, media products, analytics platforms, or other products with lawful uses. Furthermore, the provision attaches felony liability to any entity that advertises financial or technological products that "promote" transactions prohibited under Section 75 without defining what "promote" means. The provision is broadly construed such that it could reach purely informational messaging, which could raise First Amendment concerns. The breadth of the advertising restriction could chill communications by businesses of all sizes, media organizations, technology providers, and service vendors that cannot know in advance whether a communication might later be characterized as "promoting" a prohibited transaction.

II. SF 4760 would impose felony liability, which is a disproportionate penalty for violations of the advertising provision.

As drafted, SF 4760's Section 75, Subdivision 2 targets activities like the creation, operation, and facilitation of covered prediction market activity. Subdivision 3 goes further by attaching felony consequences to advertising, marketing, or "promotion," without the same detailed limitations or express knowledge-based standards. SF 4760 would impose an extraordinary penalty for speech-related conduct, particularly in an area where the boundaries may be difficult to discern. Those boundaries include the line between prohibited prediction-market activity and lawful financial products, technology services, and advertising or marketing that merely provides information rather than promotes prohibited conduct.

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For these reasons, we respectfully urge the Committee to remove Section 75, Subdivision 3 from the bill. Thank you for your consideration of our views as you contemplate ways to best protect Minnesota consumers while preserving the benefits that advertising and dissemination of accurate, informational messaging bring to society and the economy.

Sincerely,

Christopher Oswald